

these diverging cases, stating that amended claims may generally be examined for clarity on a case-by-case basis irrespective of the kind of amendment.

On the interpretation of Art. 101(3) EPC, the Enlarged Board pointed out that the requirements of Art. 84 EPC are part of the "requirements of the Convention" for the purposes of Art. 101(3) EPC. There was, however, no indication that the object and purpose of Art. 101(3) EPC was to open up the patent to a complete re-examination, whether for clarity or the other requirements of the EPC. It was rather the amendment itself which was relevant, and its effect for the ground for opposition in question. Self-evidently, the amendment must not itself give rise to new objections.

As apparent from the travaux préparatoires to the EPC 1973, the legislator had deliberately chosen not to make Art. 84 EPC a ground for opposition. It would be unsatisfactory if an opponent could cause delays whenever an amendment was made, by raising all kinds of Art. 84 EPC objections. Moreover, a lack of clarity could still be relevant in opposition proceedings in that it could influence the decision on issues under Art. 100 EPC (sufficiency, novelty, inventive step), or impact on the grounds of invalidity alleged in national proceedings relating to a European patent. Furthermore, when the EPC 2000 was drafted, no suggestion was made for a change to reverse the effect of the then established case law, i.e. the conventional approach based on T 301/87. If the deletion of an independent claim with its dependent claims permitted examination of the remaining claims for lack of clarity, Art. 84 EPC would effectively become a ground for opposition in a large number of cases, which would be contrary to the legislator's intention. To conclude otherwise for a combination of claims which actually consists of striking out the original independent claim and then writing out the previously dependent claim in full, would be arbitrary and unjustified.

In conclusion, the Enlarged Board approved the conventional line of jurisprudence as exemplified by T 301/87, and answered the referred questions as follows:

"In considering whether, for the purposes of Art. 101(3) EPC, a patent as amended meets the requirements of the EPC, the claims of the patent may be examined for compliance with the requirements of Art. 84 EPC only when, and then only to the extent that, the amendment introduces non-compliance with Art. 84 EPC."

Considering the different types of amendment distinguished in G 3/14, the board in T 1112/12 observed that a common theme underlying the Enlarged Board's ruling appeared to be that modifying a claim by **merely deleting or excluding embodiments** from the claimed subject-matter does not result in an amendment which is open to an objection under Art. 84 EPC (see also T 1977/13 and T 260/13). In T 2437/13 the granted claims already referred to figures and tables; it was thus not the amendments which introduced non-compliance with Art. 84 EPC in combination with R. 43(6) EPC. For further cases where the lack of clarity was already present in the claims as granted and the clarity objection therefore rejected, see e.g. T 266/15, T 488/13, T 1905/13, T 1287/14, T 2311/15, T 2321/15, T 2244/19.

The following decisions are examples of cases in which the claim amendment in issue involved not a simple combination of granted claims or the mere deletion or exclusion of embodiments, but rather the addition of a feature from the description, with the result that the amended claim was open to clarity objections: T 565/11, T 2321/13, T 842/14, T 315/15, T 1976/19, T 2817/19.

In T 248/13 certain ambiguous terms were already contained in claim 15 as granted. However these terms defined the flavour of the final product, whereas the terms of claim 1 of auxiliary request 1 referred to an ingredient to be added. The board considered that by taking these terms out of the context in claim 15 as granted and placing them in the context of claim 1 of auxiliary request 1, a **new ambiguity was introduced** that was not present before. Therefore this amendment was objectionable under Art. 84 EPC.

In T 1221/19 the board referred to G 3/14 (OJ 2015, A102) and recalled that, in considering whether, for the purpose of Art. 101(3) EPC, a patent as amended meets the requirements of the EPC, the claims may be examined for compliance with Art. 84 EPC only when, and then only to the extent that, the amendment introduces non-compliance with Art. 84 EPC. In line with this, the board considered that the **description** of the patent may also be examined for compliance with Art. 84 EPC only when, and then only to the extent that, the amendment introduced non-compliance with Art. 84 EPC. This was in accordance with both G 9/91 (OJ 1993, 408) and G 3/14. In the case in hand the reversion back to an erroneous reference as in the application as filed did not result in any lack of clarity or ambiguity of the disclosure in the paragraphs concerned.

5.2.3 Additional searches

In T 503/96 the board considered the criteria for the need for an **additional search** in relation to restrictive amendments. It referred to the Guidelines B-III, 3.5, then applicable, which state, "In principle, and in so far as possible and reasonable, the search should cover the entire subject-matter to which the claims are directed or to which they might reasonably be expected to be directed after they have been amended...". The board stated that whether or not to commission an additional search in a particular case was a matter for the administrative discretion of the opposition division, but if an inappropriate criterion was invoked when exercising this **discretion**, doubt would inevitably be raised as to whether the discretion was reasonably exercised. Since, in the case of amendment of the claims in the course of opposition or appeal proceedings, such amendments are to be fully examined as to their compatibility with the requirements of the EPC (G 9/91, OJ 1993, 408), it was not inappropriate for an opponent to make observations on a possible need for an additional search to enable this full examination to be carried out (Guidelines D-VI, 5, then applicable). The judgment on whether an additional search was necessary and the obligation to perform this search if it was judged to be necessary were administrative matters for the EPO.

5.3. Proprietor's approval of amended text of the patent

In T 1467/16 the board recalled that the text of the patent was at the disposition of the patent proprietor (Art. 113(2) EPC) and hence a patent could not be maintained against

the patent proprietor's will. Since revocation under Art. 105a(1) EPC at the request of the patent proprietor was not possible in the framework of opposition or opposition appeal proceedings (Art. 105a(2) EPC), the board, in line with previous case law, revoked the patent under Art. 101 EPC.

In T.861/16, the board held that since the principle of tacit acceptance ("qui tacet consentire videtur") was not established in the EPC, it was not enough for an opposition division merely to ask the patent proprietor whether it wished to comment on amendments to the description which had been prepared by the division. It had to ensure that the patent proprietor approved them.

On the need for a text submitted or agreed by the proprietor, see also chapter III.B.3.

6. Right to be heard in opposition proceedings

6.1. Principle of equal treatment

In inter partes proceedings such as opposition proceedings the right to be heard is inextricably linked to the **principle of equal treatment**: no party should be given preferential treatment in the number of times it is allowed to present its case orally or in writing. The opposition division is therefore required to ensure that the parties can exchange their submissions in full and have equal opportunity to comment on them. If the opposition division considers a multiple exchange of submissions expedient, it must give each party equal opportunity to comment. Thus, the opposition division may invite a party to submit a **rejoinder to the reply** to the notice of opposition, but in that case it is obliged to invite the other party to **respond to that rejoinder**, after which it must decide again whether a third exchange of submissions is expedient. The fact that R. 79(3) EPC (R. 57(3) EPC 1973) leaves it to the opposition division ("if it considers it expedient") to invite the opponents to reply cannot be interpreted as an authorisation to derogate from the fundamental principle of equal treatment (see T.190/90, T.682/89 and T.439/91).

According to T.669/90 (OJ 1992, 739), if the opposition division misleads a party into believing that it is not necessary to defend its interests by filing observations in reply to new facts and evidence filed by an adverse party, and if such new facts and evidence then form the basis for a decision adversely affecting the misled party, the latter has not had "an opportunity to present its comments" within the meaning of Art. 113(1) EPC. Such a procedure is also not a fair procedure and is contrary to the principle of good faith governing relations between the EPO and parties to proceedings before it (cf. T.532/91, T.678/06). Such inequality of treatment constitutes a substantial procedural violation.

In T.487/13 the board held that, by deciding not to admit auxiliary requests 4 to 6 directly after late-filed document D10 was admitted into the proceedings, the opposition division did not respect the appellant's right to be heard, which was inextricably linked to the principle of fair and equal treatment of the parties. It thus committed a substantial procedural violation. Indeed, since these new requests were filed in direct response to a change in the subject of the proceedings, they were submitted in due time and the opposition division had no discretion to disregard them.

In addition to the cases that follow, see in this chapter [IV.C.3.4.6](#) "Opportunity to comment on new grounds for opposition".

6.2. Invitation to file observations under Article 101(1) EPC

[Art. 101\(1\) EPC](#) ([Art. 101\(2\) EPC 1973](#)) reinforces the right to be heard laid down in [Art. 113 EPC](#) by requiring the opposition division, when examining an opposition, to invite the parties **"as often as necessary"** to comment, within specified periods, on its own communications or those filed by other parties. Where necessary, any communication to the proprietor of the European patent must contain a reasoned statement covering all the grounds against the maintenance of the European patent ([R. 81\(3\) EPC](#); [R. 58\(3\) EPC 1973](#)).

[Art. 101\(1\) EPC](#) does not require as a rule that the grounds for not maintaining the patent invariably be set out in a communication, but only if this is "necessary". Such "necessity" can arise only in efforts to establish the facts or in view of [Art. 113\(1\) EPC](#). So the opposition division **must issue a communication only if** it considers this **necessary**, e.g. to take up **new** substantive or legal arguments or draw attention to points still requiring clarification. [R. 81\(3\) EPC](#), which merely contains instructions concerning the content of any communications that may have to be issued, adds nothing to the above consideration of principle. Accordingly, the provisions of [Art. 101\(1\) EPC](#) and [R. 81\(3\) EPC](#) cannot be interpreted as meaning that the opposition division is obliged in every case to issue at least one communication before giving its decision, unless it is necessary to do so on the basis of [Art. 113\(1\) EPC](#) (see e.g. [T 275/89](#), OJ 1992, 126; [T 538/89](#), [T 682/89](#) and [T 532/91](#)).

Not issuing at least one communication under [Art. 101\(1\) EPC](#) cannot in itself substantiate an allegation of infringement of the right to be heard under [Art. 113 EPC](#) (see e.g. [T 774/97](#), [T 781/08](#) and [T 802/12](#)). In [T 165/93](#), for example, the board saw no need under [Art. 113\(1\) EPC](#) for the opposition division, before revoking the patent, to announce its opinion in a communication or to give a further opportunity to the patentee to declare whether he was interested in a limited patent if, despite having been informed of an additional objection of the opponent, he did not react but maintained his sole request for maintenance of the patent with the amended claims. Nor is it necessary under [Art. 113\(1\) EPC](#) to give a party a repeated opportunity to comment on the argumentation of the EPO body, so long as the decisive objection against the contested procedural action remains the same (see e.g. [T 161/82](#), OJ 1984, 551; [T 621/91](#)).

According to [T 295/87](#) (OJ 1990, 470), in opposition proceedings, under [Art. 101\(2\)](#) and [R. 57\(1\) EPC 1973](#) ([Art. 101\(1\)](#) and [R. 79\(1\) EPC](#)) the proprietor has a right to file observations upon a notice of opposition. Thereafter, observations from the parties are only admissible in the exercise of the discretion of the opposition division or a board of appeal, if such observations are necessary and expedient in the sense of [Art. 101\(2\)](#) and [R. 57\(3\) EPC 1973](#) ([Art. 101\(1\)](#), [R. 79\(3\) EPC](#)). The board specified that following communication of the patentee's observations (and any amendments), other parties are only to be invited by the opposition division to reply to such observations "if it considers it expedient". It was clearly desirable in the interest of the smooth and efficient conduct of opposition proceedings, and in the public interest, that observations by parties should be

properly limited to what is necessary and expedient. This in turn required the exercise of a proper control by the opposition division over the admissibility of observations by parties as well as of documents filed in support of such observations. Of course, the extent to which further observations are necessary or expedient depended upon various factors, including the complexity of the issues, and could only be decided in the context of each case.

For cases where a communication was considered necessary, see in this chapter IV.C.6.5. below (T.293/88, T.120/96 and T.1056/98).

6.3. Invitation to file observations under Rule 82(1) EPC

R. 82(1) EPC (R. 58(4) EPC 1973) provides that the opposition division is to inform the parties of the text in which it intends to maintain the patent and invite them to state their observations within two months if they disapprove of that text. The boards of appeal have frequently addressed the issue of when it is necessary to send the parties such a communication.

In T.219/83 (OJ 1986, 211) and T.185/84 (OJ 1986, 373) the board stated that, after oral proceedings in an appeal from opposition proceedings, the parties had to be sent a communication pursuant to R. 58(4) EPC 1973 (R. 82(1) EPC) only if they could not reasonably be expected to state their observations concerning the maintenance of the European patent in the amended form definitively during the oral proceedings (confirmed in e.g. T.75/90, T.895/90 and T.570/91).

In T.446/92 it was stated that, in a case where a duly summoned opponent was not represented at oral proceedings, the decision of the board to maintain the contested patent in amended form in accordance with a request of the patentee submitted during those proceedings could nevertheless be given orally (R. 68(1) EPC 1973; R. 111(1) EPC) at the end of the proceedings, if no new facts or evidence were dealt with during the proceedings. Under these circumstances, the application of R. 58(4) EPC 1973 (R. 82(1) EPC) could be dispensed with because the patent in suit was maintained with an amended text emanating from and approved by the patentee (see, in this respect, G.1/88, OJ 1989, 189) and, furthermore, because the opponent's **deliberate decision to refrain from being represented at oral proceedings** before the board was to be regarded as being tantamount to a tacit abandoning of his right to present comments pursuant to Art. 113(1) and R. 58(4) EPC 1973 (R. 82(1) EPC).

In T.29/16 the board held that a substantial procedural violation had occurred when the opposition division did not comply with R. 82(1) EPC, which, it stated, defined the right to be heard more particularly in the case in hand. The opponent had not been invited to comment on the text, on the basis of which the opposition division intended to maintain the patent in amended form. Therein lay a violation of the right to be heard.